

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 21, 2026, AT 8:30 A.M.

2. M-CV-0091504 ADAMS, MARK v. LACK FAMILY INVESTMENTS

Plaintiff's Motion to Strike and/or Tax Defendants' Memorandum of Costs

Preliminary Matters

Plaintiff's objections are overruled in their entirety.

Ruling on Motion

Plaintiff moves to tax defendants memorandum of costs filed with the court on March 16, 2026, after plaintiff dismissed the action.

The court must first determine whether defendant is a prevailing party pursuant to Code of Civil Procedure section 1032, subdivision (a)(4), which defines prevailing party as

the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code Civ. Proc., § 1034, subd. (a)(4).)

Here, defendant is the prevailing party because a dismissal was entered in her favor. Thus, defendant is entitled to recover her costs. (Code Civ. Proc., § 1034, subd. (b).) Plaintiff seeks to tax the entirety of the costs memorandum.

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. . . . Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.)

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Here, the challenged items of filing and motion fees are proper charges as each cost is statutorily authorized. (Code Civ. Proc., §§ 1033.5, subds. (a)(1), (3), (4), (11).) Plaintiff therefore bears the burden to show the costs were unreasonable or unnecessary. Plaintiff, however, does not meet his burden. Even assuming arguendo plaintiff did meet his burden—which he did not—defendant thereafter meets her burden to show, through the declaration of Craig Nevin and the exhibits attached thereto, the requested costs were incurred, reasonably necessary to the litigation, and reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c).)

The challenged items of remote appearance fees is not statutorily authorized and thus “may be allowed or denied in the court’s discretion.” (Code Civ. Proc., § 1033.5, subd. (c)(4).) The court finds the remote appearance fees reasonably necessary to the litigation and reasonable in amount.

Accordingly, plaintiff’s motion is denied in its entirety.

Defendant Anita Lack’s Motion for Attorneys’ Fees

Preliminary Matters

Defendant’s requests for judicial notice are granted.

Ruling on Motion

Defendant Anita Lack moves for attorney’s fees in the amount of \$66,233.50 as the prevailing party. (Code Civ. Proc., §§ 1032, 1033.5, subd. (a)(10).) Defendant asserts four separate grounds for her entitlement to attorney’s fees: Code of Civil Procedure section 1029.8; Civil Code section 8488; reciprocity; and court’s ability to issue sanctions despite plaintiff dismissing the action.

Code of Civil Procedure section 1029.8 provides that “Any unlicensed person who causes injury or damage to another person as a result of providing goods or performing services for which a license is required . . . shall be liable to the injured person for treble the amount of damages assessed in a civil action in any court having proper jurisdiction. The court may, in its discretion, award all costs and attorney’s fees to the injured person if that person prevails in the action.” (Code Civ. Proc., § 1029.8, subd. (a).) Here, there is insufficient plaintiff injured defendant. Even assuming arguendo that plaintiff injured defendant, the court exercises its discretion and declines to issue attorney’s fees pursuant to Code of Civil Procedure section 1029.8.

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Civil Code section 8488 allows the prevailing party at a hearing on a petition for a mechanic's lien to recover reasonable attorney's fees. (Civ. Code, § 8488, subd. (c).) The record reflects there was no hearing on a mechanic's lien and thus the court denies defendant's motion as to this theory.

Defendant cites *Reynolds Metals Co. v. Alperson* (1979) 25 Cal.3d 124 for the proposition that because plaintiff prayed for attorney's fees in the operative complaint then defendant is also entitled to recover attorney's fees. However, the case does not stand for such a proposition especially when plaintiff would not be entitled to recover attorney's fees pursuant to Civil Code section 1717 as he was not a signatory to the contract.

Finally, defendant contends she is entitled to attorney's fees because plaintiff dismissed the action before the court ruled on her motion for sanctions. However, this does not provide a basis to award attorney's fees as the prevailing party. Nor is the motion for sanctions before the court.

Accordingly, defendant's motion is denied in its entirety.

3. M-CV-0091794 LAW OFC. OF ALLAN FRUMKIN v. ROGERS, WARREN

Plaintiff's Motion for Summary Judgment

Plaintiff moves for summary judgment to its complaint for breach of contract. A motion for summary judgment or adjudication may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) Plaintiff, as the moving party, meets their burden if they prove each element of the cause of action. (*Id.* subd. (p)(1).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact exists as to the cause of action. (*Ibid.*) In reviewing a motion for summary judgment or adjudication, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

Plaintiff's breach of contract cause of action arises from defendant's alleged nonpayment for legal services rendered. Attorneys seeking to recover unpaid fees for legal services rendered for a former client must "forward a written notice to the client prior to or at the time of service of summons or claim in an action against the client, or prior to or at the commencement of any other proceeding against the client under a